

WILKINSON VS. WILKINSON, ET AL.

CASE NUMBER: 23CV-0202523

Tentative Ruling on Motion to Dismiss Complaint and Entire Action for Failure to Join Indispensable

Party: Roe 1 Teresa Malcolm moves to dismiss the entire action, which would constitute the Complaint filed by Plaintiff Bette Sue Wilkinson on June 21, 2023 and the Cross-Complaint filed by Robert N. Wilkinson on August 28, 2023. Roe 1 did not file a proof of service for the motion. Despite there being no proof of service on file, Defendant filed an Opposition. The Opposition was only served on Roe 1. The Court notes that Plaintiff is deceased, however, her counsel has not been relieved and Plaintiff is still a party entitled to notice. Without any notice to Plaintiff's counsel, the motion is **DENIED** without prejudice. Roe 1 did not provide a proposed Order as required by Local Rule of Court 5.17(D). Roe 1 is to prepare the Order.

The Court notes that the matter is scheduled for a Mandatory Settlement Conference this afternoon at 1:30 p.m. The Court requests that Defendant gather all documents related to the probate matter in Humboldt County so that the Court can review any Letters that issued. The Court expects that counsel for all parties, including Plaintiff's counsel, will appear so that the parties and the Court can work collaboratively to determine the most efficient manner for this case to proceed.

9:00 a.m. – Review Hearings

ALLEN VS. SHASTA COUNTY, ET AL.

CASE NUMBER: 25CV-0208696

This matter is on calendar for review regarding status of service. A First Amended Complaint was filed on September 4, 2026. Plaintiff filed a status statement addressing the status of the investigation, however, the status statement did not address service. Plaintiff is reminded of the timelines set forth in CRC 3.110 and orders that the First Amended Complaint and Summons be served. The matter is continued to **Monday, December 7, 2026 at 9:00 a.m. in Department 63** for status of service and responsive pleading. A status statement is due no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

AMARANT VS. MONARCH LEARNING CENTER CHARTER SCHOOL, ET AL.

CASE NUMBER: 23CV-0202392

This matter is on calendar for review regarding status of minor's compromise. Counsel filed a Petition for Approval on September 17, 2026 that was noticed for 8:30 a.m. this morning, however a new date will need to be selected for hearing on an Amended Petition. The review hearing will be continued to the same date at 9:00 a.m. **An appearance is necessary on today's 8:30 a.m. calendar only.**

CAL TREES LLC VS. MAXIMUS TREE WORKS, LLC, ET AL.

CASE NUMBER: 24CV-0205268

This matter is on calendar for review regarding status of default and default judgment, The Answers filed by Defendants Maximus Tree Works, LLC and Johnnie Morales were stricken on June 22, 2026 and Plaintiff stated that defaults would be sought. The Court continued the matter on August 10, 2026 to provide more time for Plaintiff to seek default and a default judgment. Plaintiff was ordered to file a status statement at least five court days prior to today's hearing. Plaintiff has not filed anything since the last hearing. **An appearance is necessary on today's calendar.**